

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

MARCOS JESURUM,

Plaintiff,

-against-

**THE CITY OF NEW YORK and
DETECTIVE ANITA MOORE,**

Defendants.

Index No.:

SUMMONS

Plaintiff designates New York County
as the place of trial

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is the location where the claims arose.

Dated: New York, New York
October 5, 2021

Rickner PLLC

By:


Rob Rickner

14 Wall Street, Suite 1603
New York, New York 10005
Phone: (212) 300-6506
Fax: (888) 390-5401
Attorney for Plaintiff

TO:

THE CITY OF NEW YORK
New York City law Department
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK****MARCOS JESURUM,**

Plaintiff,

-against-

**THE CITY OF NEW YORK and
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Defendants.

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VERIFIED COMPLAINT

Plaintiff MARCOS JESURUM, by his attorneys, Rickner PLLC, complaining of the Defendants, alleges, upon information, belief, and personal knowledge:

NATURE OF THE CASE

1. This is a civil rights action brought against the City of New York and members of the New York City Police Department ("NYPD"), who violated Plaintiff's rights under the Constitution of the United States by employing excessive and unnecessary force against him.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. § 1983 for violations of Plaintiff's rights under the Fourth and Fourteenth Amendments to the Constitution of the United States.

3. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

4. Venue is properly laid in the Supreme Court of the State of New York, County of New York, because the Plaintiff's claims arose in the County of New York.

5. Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

PARTIES

6. Plaintiff is, and was at all times relevant to this action, a resident of Westchester County in the State of New York.

7. Defendant the City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department that acts as its agent in the area of law enforcement and for which it is ultimately responsible.

8. Defendant the City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

9. Defendant Detective Anita Moore (Shield No. 2715) (hereinafter "Moore") was at all relevant times described herein an NYPD officer, employed by the City of New York. At the time of the incident described herein, Moore held the rank of Police Officer, Shield No. 393. At all relevant times described herein she was acting under color of New York state law, and acting in the course and scope of her duties as an NYPD officer. She is sued in her individual capacity.

10. At all times relevant herein, Moore was acting for and on behalf of the NYPD, with the power and authority vested in her as an officer, agent, and employee of the NYPD, and incidental to the lawful pursuit of her duties as an officer, employee, and agent of the NYPD.

11. Detective Moore is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

THE VIOLATION OF PLAINTIFF'S CIVIL RIGHTS

12. On October 6, 2018, Plaintiff was in the vicinity of 139th Street and Broadway in Manhattan, New York, when he was stopped and frisked by Moore and her partner.

13. Moore proceeded to use excessive force in arresting Plaintiff, shooting him in the arm without cause or legal justification.

14. This action seeks damages on behalf of Plaintiff for the extraordinary emotional pain and suffering and injuries to his person that Plaintiff was forced to endure as a consequence of the Moore's decidedly wrongful actions.

15. Moore's actions were wanton, reckless, and malicious, as well as in blatant disregard of Plaintiff's civil rights, such that Moore is liable to Plaintiff for punitive damages.

16. The causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

**FIRST CLAIM FOR RELIEF:
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983
AGAINST DEFENDANT ANITA MOORE**

17. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

18. Moore used unreasonable and excessive force against Plaintiff when she deployed her firearm, striking and seriously injuring Plaintiff without cause or legal justification.

19. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries.

20. By virtue of the aforementioned acts, Plaintiff was deprived civil rights guaranteed under the Fourth and Fourteenth Amendments to the United States Constitution, and Moore is liable to Plaintiff for damages under 42 U.S.C. § 1983.

21. As a result of the above unconstitutional conduct, the Moore is also liable to plaintiff for punitive damages.

**SECOND CLAIM FOR RELIEF:
MONELL LIABILITY AGAINST THE CITY OF NEW YORK**

22. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

23. The City of New York is liable for Moore's unconstitutional use of force under *Monell v. Department of Soc. Svcs.*, 436 U.S. 658 (1978), because the driving force behind the constitutional violation is the *de facto* policy and practice of the NYPD and City of New York.

24. Specifically, the City of New York has a pattern and practice of allowing, condoning, and ratifying the unconstitutional use of force by its police department, as well as failing to adequately train, supervise, and discipline its officers for unnecessary uses of force and/or the use of excessive force in lieu of tactics meant to deescalate encounters with civilians.

25. As a result, the City of New York is liable for any damages caused by Moore's actions, except for punitive damages.

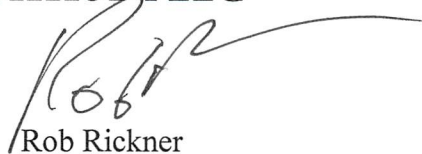
WHEREFORE, Plaintiff demands the following relief jointly and severally against all of the Individual Defendants, as well as the City of New York:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
October 5, 2021

Rickner PLLC

By:

A handwritten signature in black ink, appearing to read 'Rob Rickner', with a long horizontal flourish extending to the right.

Rob Rickner

14 Wall Street, Suite 1603
New York, New York 10005
Phone: (212) 300-6506
Fax: (888) 390-5401
Attorney for Plaintiff

ATTORNEY'S VERIFICATION

I, Rob Rickner, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

1) I am the attorney of record for the Plaintiff .

2) I have read the annexed Verified Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.

3) This verification is made by me because Plaintiff does not reside in the County where I maintain my offices.

Dated: New York, New York
October 5, 2021

Rickner PLLC

By:



Rob Rickner

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